

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-17

**OCEAN NETWORK EXPRESS PTE. LTD. and OCEAN NETWORK EXPRESS
(NORTH AMERICA), INC. –
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(c)**

**RESPONSE OF OCEAN NETWORK EXPRESS PTE. LTD. TO THE BUREAU OF
ENFORCEMENT MOTION TO COMPEL DISCOVERY**

Ocean Network Express Pte Ltd. (“ONE”) hereby responds to the Bureau of Enforcement’s (“BOE”) belated Motion to Compel Discovery from ONE (“Motion”), apparently filed as a tit-for-tat in response to ONE’s earlier motion to compel directed to BOE. ONE shows below that the Motion is entirely without merit. But more immediately, BOE’s request for relief is doubly moot.

1. BOE’s Motion is Doubly Moot.

BOE’s motion is first moot for the reason that, according to the procedural schedule established by the Presiding Officer in this proceeding, discovery ended at 12 am on May 2, 2022.¹

BOE’s motion is additionally moot for the critical reason that BOE has already received all of the information it requested relating to ONE.² Although BOE asserts that

¹ Even assuming *arguendo* that discovery does not end until 12 am on May 3, the discovery period will still have closed before BOE’s Motion may be considered and ruled upon.

² As BOE has moved to dismiss Ocean Network Express (North America) Inc., discovery relating to ONE NA is no longer relevant.

some of ONE's **original** (April 4) responses were inadequate, BOE told ONE, during the telephone conference on April 20, 2022, that BOE's needs would be satisfied if ONE responded to the specific requests for information set out in the lower half of BOE Exhibit 3. ONE provided that information as to ONE by email to BOE dated April 28, 2022, and thus BOE's discovery claims are now moot.³

Although there is thus no reason for the Presiding Officer to address BOE's Motion, the Motion is in any event deficient both as a matter of procedure and as a matter of substance.

2. Substantive Response to BOE's Motion.

a. Chronology.

On April 4, 2022, ONE served its discovery responses on BOE.

On April 5, 2022, BOE served its discovery responses on ONE and ONE NA.

On April 12, 2022, ONE NA asked BOE when it would produce certain documents identified in BOE's response to ONE NA's Interrogatory 21.

On April 13, 2022, BOE responded: "We are reviewing and will get back to you." As far as we are aware, BOE has never gotten back to us about these documents, but on April 19, 2022, BOE did produce two additional groups of documents.⁴

On April 14, 2022, counsel for ONE sent an email to BOE outlining the deficiencies in BOE's responses to ONE's discovery requests, further stating that, absent an adequate

³ The only information requested by BOE that ONE did not provide in response to BOE Exhibit 3 was duplicate copies of certain ONE policies to which BOE has long had access.

⁴ At the same time, BOE also produced a privilege log with limited descriptions of other responsive documents.

BOE supplement by 5:00 pm on April 19, ONE would move to compel. BOE neither supplemented nor asked any questions about what ONE wanted.⁵

BOE did not respond to these emails (apart from the unrelated document production, BOE made at 5:04pm on April 19), so, early on April 20, 2022, ONE requested a conference in a final attempt to avoid a motion to compel, and to meet the obligation to confer. BOE first responded that it could not confer, then suggested a conference late in the day.

Regrettably, the April 20 conference did not result in any relief from BOE or any indication it would make any effort to provide the information sought by ONE. ONE accordingly informed BOE that it would file the motion to compel, as time was short, but promised to keep working with BOE to narrow or resolve the BOE deficiencies. BOE has never taken ONE up on the offer, and BOE has made no further effort either to request clarification on what ONE seeks – if BOE believed clarification were needed -- or to provide compliant answers to ONE.

That same date, after the conference, ONE filed its pending Motion to Compel.

During that April 20 conference, BOE raised for the first time that it had some concerns about ONE's discovery responses. Counsel for ONE asked BOE to state in writing what it still wanted.

On April 21, 2022, BOE sent BOE Exhibit 3. Although most of the specific information BOE there requested was not fairly within any of BOE's previous discovery

⁵ BOE has previously asserted that ONE did not, when it identified the deficiencies in BOE's responses expressly ask for a conference. That is just silly. When a party asserts deficiencies and states that it will move to compel unless they are fixed, it is incumbent on the deficient party either to fix the responses or, if it is unclear, to ask about the deficiencies. But struthious ignoring of the deficiencies cannot make them go away.

requests or the scope of the BOE's own allegations in its Order of Investigation,⁶ ONE decided to provide the information nevertheless, as a matter of courtesy.

On Friday evening, April 22, 2022, BOE moved to dismiss ONE NA, a motion that ONE/ONE NA supported by response dated April 25, 2022.

On April 26, 2022, BOE filed the instant Motion to Compel against ONE, obviously knowing that discovery would end before it could be decided.

On April 28, 2022, ONE emailed BOE with the information requested in BOE Exhibit 3. ONE expected BOE to withdraw its instant Motion in light of this satisfaction of its requests, but BOE apparently chose not to do so, for reasons yet unknown.

a. **BOE's Motion is Procedurally Deficient.**

Among other procedural issues, BOE's Motion does not comply with Rule 150, as it does not attach copies of the certificates of service for the BOE discovery requests to which the Motion relates. 46 CFR 502.150 (a)(2)(iv). That alone is ample reason to deny the Motion.

b. **BOE's Motion is Substantively Deficient.**

Although there is no reason for the Presiding Officer to reach the merits of BOE's belated, moot, and procedurally deficient Motion, if she chooses to do so, the Motion should also be denied on the merits. We address BOE's Motion *seriatim* according to BOE's own

⁶ See, Order of Investigation and Hearing at 5: "NOW THEREFORE IT IS ORDERED that pursuant to 46 U.S.C. §§ 41302(a) and 41304, and 46 C.F.R. § 502.63, an investigation is hereby instituted to determine whether ONE is violating or has violated section 41102(c) of the Act by ***assessing demurrage, detention, per diem and/or other monetary charges to Greatway as a party acting on behalf of the shipper, consignee, or other person with a beneficial interest in the cargo...***" Docket No. 21-17, Doc. No. 1 (emphasis added).

organization. We show in each case that BOE has merely stated, but not supported, the claim of incompleteness, apparently expecting the Presiding Officer to fill in the blanks.

(i) **ONE's Responses to BOE Requests for Admission 11, 13, 15, 16, 18, 19, 29, 31**

BOE's Motion is confusing. Although the heading clearly relates to requests for admission, the text which follows also refers to interrogatories, e.g., "Respondent's failure to answer the interrogatories frustrates the Commission's ability to determine if the claims of unlawful activity alleged in the notice of investigation are true." Motion at 2.⁷

ONE responds on the assumption that BOE was simply hasty and careless in cutting from one set of discovery responses and pasting into the other. In any event, BOE's Motion simply alleges, in vague and unsupported terms, and without further elaboration, that ONE's responses were not complete.⁸ This unadorned assertion confirms the fact that BOE quickly cobbled the Motion together without serious thought, apparently to retaliate against ONE's pending Motion to Compel.

In reality, as evidenced by ONE's responses set forth in BOE Exhibit 1, ONE has responded fully to each of BOE's Requests for Admission, even where ONE also objected.

(ii) **ONE's Responses to BOE Interrogatories 1-7, 11-14, 19, 24, 29**

BOE's unsupported claims regarding ONE's responses to BOE's interrogatories

⁷ The Motion also fails to mention Rule 147, which is the appropriate rule for challenging responses to requests for admissions.

⁸ BOE complains that ONE has somehow hidden its policies from BOE. Nothing could be further from the truth. BOE has had access to all of ONE's policies inquired about since well before the Order of Investigation was issued. BOE's assertion is simply a make weight attempt to add gravity to its spurious claim.

amount to nothing more than its empty assertions about requests for admissions and rely again on the canard that BOE is unaware of ONE's policies.

ONE's response to BOE's Interrogatory 1 is obviously a complete answer to the question asked, and its inclusion in the Motion is just another sign of BOE's haste.⁹

ONE's responses to BOE's Interrogatories 2, 3, 4, 5, 6, 7, 11, 12, 13, 24 were also complete answers, as they were answered fully, albeit subject to objections. With respect to BOE's Interrogatory 14, ONE repeatedly explained to BOE that, due to the extremely broad nature of the inquiry, ONE could not provide a meaningful response, especially within the confines of such a compressed discovery schedule, and invited BOE to better define its needs. BOE finally did so on April 21 in BOE Exhibit 3, and ONE provided complete answers to the narrowed questions, as noted above. Finally, BOE has never explained, either in a conference with ONE or in its Motion, why BOE's Interrogatory 29, regarding the type of bill of lading and its role in cargo release, was either relevant or "reasonably calculated to lead to the discovery of admissible evidence." As BOE does not address Interrogatory 29 in its Motion, we take that claim as abandoned in any event.

(ii) **ONE's Responses to BOE Requests for Production of Documents 1, 2, 3, 5**

On April 4, 2022 ONE timely produced 2,554 pages of documents to BOE. ONE looked and did not find any additional responsive documents. other than the ONE/ONE NA Agency Agreement. BOE's request for that document or documents relating to the agency relationship is now moot, as it is relevant only to BOE's alleged claims against ONE NA

⁹ONE identified Jacob K. Lee as the person answering BOE's Interrogatories, with the assistance of ONE's counsel. Contrast ONE's response here with BOE's non-response to a substantively identical Interrogatory: See, BOE's Response to ONE NA Interrogatory No. 1.

and BOE has already surrendered those claims. In any event, ONE told BOE more than once that it was willing to produce that document subject to an adequate confidentiality agreement. BOE declined to engage on the matter of a confidentiality agreement, other than a vague refrain that it would not agree to a “broad” or “blank agreement” (which was never requested by ONE in any event)¹⁰ but might consider an agreement for identified documents.

ARGUMENT

As the proponent of a motion to compel discovery, BOE bears the “initial burden of proving that the information sought is relevant.” *Alexander v. FBI*, 186 F.R.D. 154, 159 (D.D.C. 1999). Here, BOE has utterly failed to even begin bearing that burden. BOE has instead proffered only vague, unsupported claims that ONE’s responses are incomplete. In any event, as discussed at the outset, BOE’s Motion is plainly moot.

¹⁰ BOE’s assertion that ONE requested confidentiality for multiple documents is untrue, albeit now irrelevant.

CONCLUSION

For the reasons given above, BOE's Motion to Compel should be denied as moot, procedurally deficient, and substantively insufficient.

DATED: May 2, 2022

Respectfully submitted,

/s/ Rebecca A. Fenneman

Rebecca A. Fenneman
D.C. Bar: No. 1722599
Eric C. Jeffrey
D.C. Bar: No: 252585
Jeffrey/Fenneman Law + Strategy, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005
Telephone: 202-904-2301
Email: EJeffrey@JeffreyFenneman.com
RFenneman@JeffreyFenneman.com
**ATTORNEYS FOR OCEAN
NETWORK
EXPRESS PTE. LTD.**

CERTIFICATE OF SERVICE

I certify that on the 2nd day of May, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR THE BUREAU OF ENFORCEMENT:

Benjamin K. Trogdon, Director
BTrogdon@fmc.gov

Brenda Doty, Trial Attorney
Bdoty@fmc.gov

Theron Korsak, Trial Attorney
TKorsak@fmc.gov

Bureau of Enforcement
Federal Maritime Commission
800 N. Capitol St., N.W.
Washington D.C. 20573
(202) 523 5783

/s/ Rebecca A. Fenneman
Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
Tel: (202) 904-2301
Jeffrey/Fenneman Law + Strategy, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005